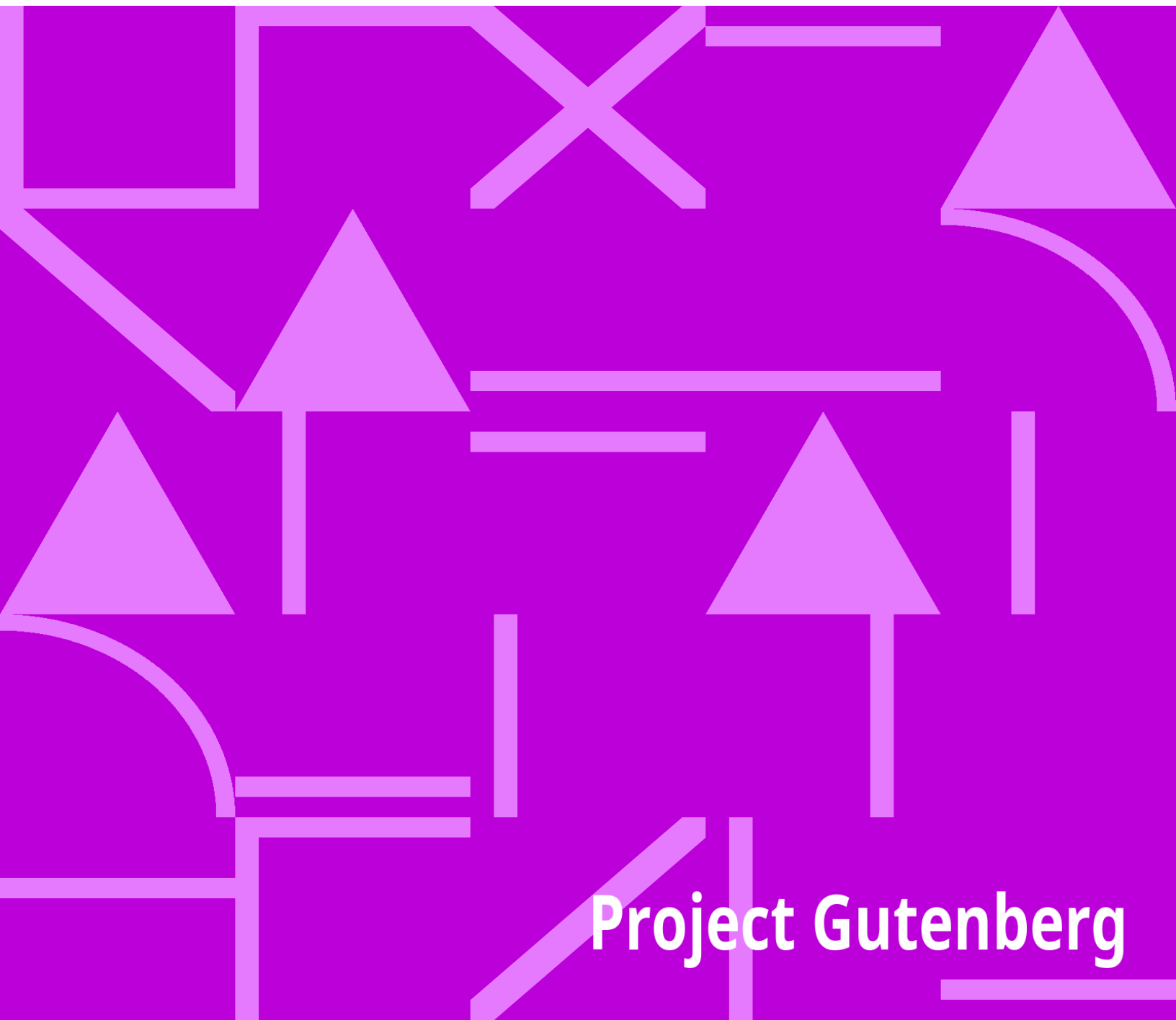


Love—Marriage—Birth Control

Viscount Bertrand Edward Dawson

An abstract geometric pattern composed of various shapes including squares, triangles, rectangles, and lines in shades of purple and magenta, creating a complex, layered background.

Project Gutenberg

Love—Marriage—Birth Control

Viscount Bertrand Edward Dawson

An abstract geometric pattern in shades of purple and magenta, featuring various shapes like triangles, squares, lines, and a large 'X' and 'U' formed by intersecting lines.

Project Gutenberg

The Project Gutenberg eBook of Love—Marriage—Birth Control

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Love—Marriage—Birth Control

Author: Viscount Bertrand Edward Dawson Dawson

Release date: October 7, 2008 [eBook #26837]

Language: English

Original publication: London: Nisbet & Co. Ltd., 1922

Other information and formats: www.gutenberg.org/ebooks/26837

Credits: Produced by Bryan Ness, Markus Brenner and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK LOVE—
MARRIAGE—BIRTH CONTROL ***

LOVE—MARRIAGE— BIRTH CONTROL

Being a Speech delivered at the Church
Congress at Birmingham, October, 1921:

WITH A FOREWORD

BY
LORD DAWSON OF PENN



London
NISBET & CO. LTD.
22 BERNERS STREET, W.1

First Published January, 1922
Reprinted January, 1922
Reprinted February, 1922
Reprinted April, 1922

All rights reserved

FOREWORD

AT the Church Congress held this autumn at Birmingham I was honoured by an invitation to speak on "Sexual Relationships."

The subject-matter of that speech has aroused widespread interest and some controversy. It is being published in response to numerous requests and because most of the reports, being of necessity condensed, inadequately and even in some instances incorrectly set forth the views I endeavoured to champion; for any speech on a subject so difficult to handle needs to be read in its entirety if misapprehensions are to be avoided.

And first, may I thank numerous correspondents; and those in disagreement equally with those in agreement with me. One and all they bear testimony, if indeed such were needed, to how widespread and responsible is the interest on this question, and therefore to the wisdom of its full consideration. Amongst the letters are intimate human documents which pathetically disclose, as does professional experience, how frequently happiness is marred by ignorance of either the principles or the methods which should condition the true conception of sexual relationships.

I elected to deal with these relationships in their healthy rather than their morbid aspects, because the study of health is a sure way to lessen disease. Mere denunciations of evil serve but small purpose. The aim of statesmanship is rather to seek out causes and ponder over remedies, and prominent among remedies is surely the study of the significance and purport of sex love in a well-ordered and Christian community and provision for its healthy outlet. To this the first part of my speech was devoted. The view there upheld has brought forth a large measure of agreement and no reasoned disagreement.

The second part of my speech dealing with birth control (or what in strict accuracy should be called conception control) has aroused more controversy, but I venture to think that some, at least, of the criticism

directed against my argument will disappear with a perusal of this full text of my speech. Therein will be found condemnation of infertile marriages and a strong plea that children are essential to the health and happiness of man and woman, are necessary to each other and of vital importance to the nation.

The difference between my critics and myself is not as to the vital necessity of the family following marriage, but rather this—they would like to see the large families prevalent fifty years ago restored (and where means and circumstances are favourable, such large families may be the source of much happiness); whereas under present-day conditions I should regard them as seldom attainable and desirable, and would favour smaller families of children born at predetermined intervals.

A married couple who have produced four children in twenty years cannot be said to have ignored the precept “be fruitful and multiply and replenish the earth” because they have so selected the times for the conceptions of their children as to enable them to give those children a better upbringing rather than have selfishly left the sequence of their offspring to blind chance.

The argument that the nation should foster large families in order more quickly to people the untenanted portions of the Empire, and so add to the strength and wealth of the British Dominions, requires serious attention, not in isolation, but in conjunction with other considerations, and calls forth varying opinions from economists.

On the other hand, emigration into *foreign* lands would seem to be a source of weakness to a nation. The feeding, clothing and educating of a young Briton cost the nation a definite sum of money, say, £400; if at the age of twenty, when he is ready to produce, that young Briton emigrates to a foreign state, he is a definite loss to the country of his birth and the country of his adoption is the gainer.

From another standpoint the criticism is made that I have not urged the paramount necessity of diminishing the population of these islands. With the economic soundness of this view others are better fitted to deal, but no economic considerations would outweigh the importance of child life inspiring the homes of the land, and if the number and sequence of children

can be regulated by the parents' circumstances, these homes will increase in number, will start when parents are younger and confer greater benefits alike on the family and the State. If need be, the State could grant a progressive rebate of taxation, and educational facilities for each of three children born after the second and where the father is twenty-five years of age or upwards.

It is held by some that artificial birth control is contrary to Christian morals. This is the view firmly held by the Roman Catholic Church, and since the governance of the Roman communion is based on "authority," its decisions are binding on its members and command our respect. But pronouncements of Protestant communions do not owe their force to "authority," but to the conviction they carry in the minds and consciences of their people, and no clear scriptural sanction for the condemnation of birth control has been given, nor does the report of the Lambeth Conference vouchsafe any reasons why it is physically and morally harmful.

A distinguished prelate of our Church has characterised the views herein set forth as "very unguarded."^[1] If by that expression he means "careless," he cannot have done me the honour of reading my speech, which, whatever its demerits, bears ample evidence of carefully considered thought and expression. If by "unguarded" he means "outspoken," I will plead justification. For is it not time that a question which deeply concerns not only the thought, but the practice of the thinking portions of communities should be fully considered and its strength and its weakness disclosed by full discussion? The world looks to its leaders for reasoned guidance, not for assertion which may be but the husk of a thought that has gone. What is wanted is reasoned consideration, not unreasoned condemnation. For churchmen and statesmen alike, opportunism helps in situations which are small, but never in those which are large; there clarity of principle alone stands forth as a beacon to light the path.

^[1] Diocesan Conference at York.

The fear that discussion of this vital problem will endanger morality surely loses sight of the fact of knowledge being so fundamental to our well-being, that incidental dangers encountered along its path must not deter us from its continued pursuit.

Moreover, it will be noticed that I have discriminated between the principle of birth control and the methods of its application, the latter being preferably determined by the advice of the family doctor rather than by the perusal of books in general circulation.

The attitude of mind of the Church towards the problems of sexual relationships is part of a larger question, viz., the ever-widening gap between the formal teaching of the Church and the actual belief of the present generation, including many who by baptism and early training belong to her fold.

This gap between authority and actuality of belief imposes a strain on intellectual integrity and weakens the foundations of a real allegiance. For those of us who are of mature years the gap is bridged by the tender associations of our childhood and the memory of parents, for whom no such gap existed, and whose faith and character have left indelible impressions on our lives. But for the youth of to-day no such bridge exists. The War has caused a hiatus and thought has broken with tradition. Thus, youth is no longer willing to accept forms and formulæ only on account of their age. So it has set out on a voyage of inquiry, and finding some things which are doubtful and others which are insufficient, is searching for forms of expression more in harmony with the realities of life and knowledge. Although becoming estranged in thought from the Church, it is possessed of deep religious feeling and, firm on the rock foundation of faith, is trying to build a superstructure more in accord with the progress of revelation, not only in religion, but in science, and the needs of the world in which it moves and has its being.

Far be it, that I should write thee sin or blame,
Or think thee unbefitting holiest place,
Perpetual fountain of domestic sweets,
Whose bed is undefiled and chaste pronounced,
Present, or past, as saints and patriarchs used.
Here Love his golden shafts employs, here lights
His constant lamp, and waves his purple wings,
Reigns here and revels; not in the bought smile
Of harlots, loveless, joyless, unendeared,
Casual fruition; nor in court-amours,
Mixed dance, or wanton mask, or midnight ball,

Or serenate, which the starved lover sings
To his proud fair, best quitted with disdain.
These, lulled by nightingales, embracing slept,
And on their naked limbs the flowery roof
Showered roses, which the morn repaired.

Paradise Lost,
Book IV.

LOVE—MARRIAGE—BIRTH CONTROL

MAY I make certain preliminary observations? Painters and poets depict Love to us in golden hues and arouse in us happy and sympathetic, and, I trust, reminiscent response, helping us to realise that life without the love of man and woman would be like the world without sunshine.

Though, therefore, the social student in his approach to the subject is not helped by the beauties of colour and song, it behoves him to avoid undue solemnity, and still more an air of portentous foreboding.

In each age customs have been deplored as heralds of evil, but the evils have seldom materialised.

One of the difficulties of this subject is that those who are called upon to give counsel are apt to forget the strength of the forces to be dealt with, for it is during youth especially that sex attractions are so powerful, and, may I add, so delightful. Middle-aged people may be divided into three classes.

Those who are still young.

Those who have forgotten they were young.

Those who were never young.

And it is with the first class before my eyes that I am privileged to address this audience.

I will confine my attention to the sexual relationships between unrelated adult people in youth and prime.

It is common ground that sex love between such people should be the physical expression of a lasting affection, and be so intimately blended with the feelings of helpfulness, sympathy, and intimate friendship as to form a

union of body, mind and spirit. It further should be associated with the love of and desire for children.

This complex is best secured by the institution of marriage.

All its constituent features, except two, are vividly realised in intimate friendship, and above all, in that unique bond between mother and son which with some of us is the most wonderful thing in our lives.

Its two exclusively distinctive features are: *sex love* and *child love*.

These are the real problems before us to-day, particularly the former, and if in these remarks I seem to concentrate on the problems of sex love, be it understood I do so from a desire to save the time of the meeting and not because I think sex love should reign alone in unbalanced supremacy.

And by sex love I mean that love which involves intercourse or the desire for such.

It is necessary to my argument to emphasise that sex love is one of the clamant dominating forces of the world. Not only does history show the destinies of nations and dynasties determined by its sway—but here in our every-day life we see its influence, direct or indirect, forceful and ubiquitous beyond aught else.

AN IMPERIOUS INSTINCT.

Any statesmanlike review, therefore, will recognise that here we have an instinct—so fundamental, so imperious—that its influence is a fact which has to be accepted: suppress it you cannot. You may guide it into healthy channels—but an outlet it will have, and if that outlet is inadequate or unduly obstructed, irregular channels will be forced.

We uphold the control of sex love outside marriage by the individual—and that we are right in so doing is incontestable. But let us realise that in practice self-control has a breaking point, and that if in any community marriage is difficult or late of attainment, an increase of irregular unions will inevitably result.

That the Church recognises this is shown by the statement that marriage was instituted to prevent sin. In considering the problem of illicit intercourse and its attendant evils the social conditions that make for a wholesome life are of more efficiency than Acts of Parliament to suppress vice.

My desire, however, on this occasion is rather to consider sex love in relation to marriage. The first point I wish to make is that people need more knowledge of the scientific bearings of sex relations and more clearly defined guidance of their rightful purport and practice. They are imperfectly provided with both. We talk about instructing the young when we are neither clear nor agreed amongst ourselves, and the young are endangered as much by crudity as by absence of instruction.

All are agreed that union of body should be in association with union of mind and soul; all are agreed that the rearing of children is a pre-eminent purpose. But what purport is there beyond these? Here there is a lack of precision.

THE CHURCH AND MARRIAGE.

What does the Church service say? It says “Marriage was ordained for a remedy against sin, and to avoid fornication; that such persons as have not the gift of continency might marry and keep themselves undefiled members of Christ’s body.”

Now this is a very negative blessing. It implies that where unfortunately people cannot be continent that marriage gives the best way out—enables them to get relief within the pale of virtue. This attitude affords to sex love no positive purport or merit of its own, and is in striking conflict with the facts of life through the ages—facts which carry social approval.

The recent pronouncement of the Church as set forth in Resolution 68 of the Lambeth Conference seems to imply condemnation of sex love as such, and to imply sanction of sex love *only* as a means to an end—namely, procreation, though it must be admitted it lacks that clearness of direction which in so vital a matter one would have expected. It almost reminds me

of one of those diplomatic formulæ which is not intended to be too clear. Allow me to quote from it:—

“In opposition to the teaching which under the name of science and religion encourages married people in the deliberate cultivation of sexual union as an end in itself, we steadfastly uphold what must always be regarded as the governing consideration of Christian marriage. One is the primary purpose for which marriage exists—namely, the continuation of the race through the gift and heritage of children; the other is the paramount importance in married life of deliberate and thoughtful self-control.”

THE FACTS OF LIFE.

Now the plain meaning of this statement is that sexual union should take place for the sole purpose of procreation, that sexual union as *an* end in itself—not, mind you, *the* only end—(there we should all agree), but sexual union as *an* end in itself is to be condemned.

That means that sexual intercourse should rightly take place *only* for the purpose of procreation.

Now the large majority of conceptions take place immediately after and before the monthly period.

Quite a large family could easily result from quite a few sexual unions. For the rest the couple should be celibate. Any intercourse not having procreation as its intention is “sexual union as an end in itself,” and therefore by inference condemned by the Lambeth Conference.

Think of the facts of life. Let us recall our own love—our marriage, our honeymoon. Has not sexual union over and over again been the physical expression of our love without thought or intention of procreation? Have we all been wrong? Or is it that the Church lacks that vital contact with the realities of life which accounts for the gulf between her and the people?

The love envisaged by the Lambeth Conference is an invertebrate joyless thing—not worth the having. Fortunately it is in contrast to the real thing as practised by clergy and laity.

Fancy an ardent lover (and what respect have you for a lover who is not ardent)—the type you would like your daughter to marry—virile, ambitious, chivalrous—a man who means to work hard and love hard. Fancy putting before these lovers—eager and expectant of the joys before them—the Lambeth picture of marriage. Do you expect to gain their confidence?

They ask for bread; you give them a stone.

ALLEGIANCE OF THE YOUNG.

Authority, and I include under authority the Churches, will never gain the allegiance of the young unless their attitude is more frank, more courageous, and more in accordance with realities.

And to tell you the truth, I am not sure that too much prudent self-restraint suits love and its purport. Romance and deliberate self-control do not, to my mind, rhyme very well together. A touch of madness to begin with does no harm. Heaven knows life sobers it soon enough. If you don't start life with a head of steam you won't get far.

Sex love has, apart from parenthood, a purport of its own. It is something to prize and to cherish for its own sake. It is an essential part of health and happiness in marriage. And now, if you will allow me, I will carry this argument a step further.

If sexual union is a gift of God it is worth learning how to use it. Within its own sphere it should be cultivated so as to bring physical satisfaction to both, not merely to one. The attainment of mutual and reciprocal joy in their relations constitutes a firm bond between two people and makes for durability of their marriage tie.

Reciprocity in sex love is the physical counterpart of sympathy. More marriages fail from inadequate and clumsy sex love than from too much sex love.

PASSION A WORTHY POSSESSION.

The lack of proper understanding is in no small measure responsible for the unfulfilment of (connubial) happiness, and every degree of discontent and unhappiness may from this cause occur, leading to rupture of the marriage bond itself. How often do medical men have to deal with these difficulties, and how fortunate if such difficulties are disclosed early enough in married life to be rectified. Otherwise how tragic may be their consequences, and many a case in the Divorce Court has thus had its origin.

To the foregoing contentions it might be objected you are encouraging passion. My reply would be, passion is a worthy possession; most men, who are any good, are capable of passion.

You all enjoy ardent and passionate love in art and literature. Why not give it a place in real life?

Why some people look askance at passion is because they are confusing it with sensuality. Sex love without passion is a poor, lifeless thing. Sensuality, on the other hand, is on a level with gluttony—a physical excess—detached from sentiment, chivalry, or tenderness.

It is just as important to give sex love its place as to avoid its over emphasis. Its real and effective restraints are those imposed by a loving and sympathetic companionship, by the privileges of parenthood, the exacting claims of career and that civic sense which prompts men to do social service.

Now that the revision of the Prayer Book is receiving consideration, I should like to suggest, with great respect, that an addition be made to the objects of marriage in the Marriage Service, in these terms: “The complete realisation of the love of this man and this woman, the one for the other.”

BIRTH CONTROL.

And now, if you will permit me, I will pass on to consider the all-important question of Birth Control.

First, I will put forward with confidence the view that birth control is here to stay. It is an established fact, and for good or evil has to be accepted.

Although the extent of its application can be and is being modified, no denunciations will abolish it.

Despite the influence and condemnations of the Church, it has been practised in France for well over half a century, and in Belgium and other Catholic countries is extending. And if the Roman Catholic Church, with its compact organisation, its power of authority, and its discipline, cannot check this procedure, is it likely that Protestant Churches will be able to do so?—for Protestant religions depend for their strength on the conviction and esteem they establish in the heads and hearts of their people.

The reasons which lead parents to limit their offspring are sometimes selfish, but more often honourable and cogent. The desire to marry and to rear children well equipped for life's struggle, limited incomes, the cost of living, burdensome taxation, are forcible motives; and, further, amongst the educated classes there is the desire of women to take a part in life and their husband's careers, which is incompatible with oft-recurring pregnancies. Absence of birth control means late marriages, and these carry with them irregular unions and all the baneful consequences.

It is idle to decry illicit intercourse and interpose obstacles to marriage at one and the same time.

But, say many whose opinions are entitled to our respect: "Yes—birth control may be necessary, but the only birth control which is justifiable is voluntary abstention from connubial relations." Such abstention would be either ineffective or, if effective, impracticable and harmful to health and happiness.

To limit the size of a family to, say, four children during a child-bearing period of 20–25 years, would be to impose on a married couple an amount of abstention which for long periods would almost be equivalent to celibacy, and when one remembers that owing to economic reasons the abstention would have to be most strict during the earlier years of married life when desires are strongest, I maintain a demand is being made which for the mass of people it is impossible to meet; that the endeavours to meet it would impose a strain hostile to health and happiness and carry with them grave dangers to morals.

Imagine a young married couple in love with each other—the parents, say, of one child, who feel they cannot afford another child for, say, three years—being expected to occupy the same room and to abstain for two years. The thing is preposterous. You might as well put water by the side of a man suffering from thirst and tell him not to drink it.

And further than that, if the efforts to abstain are seriously made the strain involved is harmful to the health and temper—if the efforts do not succeed the minds of husband and wife are troubled by doubts and anxieties which are damaging to their intimate relationships. And, moreover, if this harmful restraint succeeds in preventing conception there eventuates the inevitable prevalence of sex excitement followed by abortive and half-realised satisfaction, and the enhanced risk of the man or woman yielding to outside sex temptations.

No—birth control by abstention is either ineffective, or, if effective, is pernicious.

THE HOME'S TRUE INTERESTS.

I will next consider Artificial Control. The forces in modern life which make for birth control are so strong that only convincing reasons will make people desist from it. It is said to be unnatural and intrinsically immoral. This word unnatural perplexes me. Civilisation involves the chaining of natural forces and their conversion to man's will and uses. Much of medicine and surgery consists of means to overcome nature.

When anæsthetics were first used at childbirth there was an outcry on the part of many worthy and religious people that their use under such circumstances was unnatural and wicked, because God meant woman to suffer the struggles and pains of childbirth. Now we all admit it is right to control the process of childbirth, and to save the mother as much pain as possible. It is no more unnatural to control conception by artificial means than to control childbirth by artificial means. Surely the whole question turns on whether these artificial means are for the good or harm of the individual and the community! Do all contraceptive measures damage the individual? The answer to that depends on the purpose for which they are used. If they are used to render unions childless or inadequately fruitful they

are harmful. There are grounds for thinking that unrealisation of maternity favours sterility.

Generally speaking, birth control before the first child is inadvisable. On the other hand, the justifiable use of birth control is to limit the number of children, and to spread out their arrival in such a way as to serve their true interests and those of their home.

That such applications of birth control produce no harm receives support from the study of the numbers and distribution of the children of the professional classes.

The advantage and disadvantage of this or that contraceptive is a technical matter for the doctors to determine.

Again, it has been stated that artificial control is harmful because it leads to excessive indulgence. Experience and evidence are against this being a fact.

Contraceptives by the time and circumstance of their application involve prudence and control. The proper and efficient restraints on undue sexual indulgence are to be found in mutual consideration, sympathy, and tenderness and the pressing claims of life's duties.

The sensualist who is not deterred from excess by these considerations will be completely careless whether his indulgence results in children or not—he is moved by his selfish impulses alone.

CAREFUL DISTINCTION.

Once more, careful distinction needs to be made between the use and the bad effects of the abuse of birth control. That its abuse produces harm I fully agree—harm to parents, to families, and to the nation. But abuse is not a just condemnation of legitimate use. Over-eating, over-drinking, over-smoking, over-sleeping, over-work do not carry condemnation of eating, drinking, smoking, sleeping, work.

But the evils of excessive birth control are very real. There is first the individual—every woman is better in body and mind for child bearing—the

periodic completion of the maternal cycle brings out the best, preserves youth and maintains vital contact with life. Maternity gives to woman her most beautiful attributes. Fancy being mad enough to suppress it! If one watches the woman with one child and all maternity finished before thirty, and compare her at forty with the woman of the same age who has had, say, four children at proper intervals, who usually has the advantage in preservation of youth and beauty? Not the former.

On the other hand, it must be admitted that baby after baby every year or eighteen months wears and often exhausts a woman's strength. The inference is that the use of birth control is good, its abuse bad.

Next, the children. Is it even necessary to refer to the failure of the single-child household? Poor little thing! Surrounded by over-anxious parents, spoiled, no children to play with, bored stiff by adults. And then, perhaps, illness, and it may be death—and when it is too late to produce another.

Of the many tragedies I met in the war none exceeded that attaching to the loss of only children. It often means the end of all things; nothing to live for—just blank despair.

THE WAY OF HAPPINESS.

The parents and the home both need children of varying ages. That is the way of happiness and enduring youth.

And lastly, the national aspect may be stated very briefly. If England is not to lose her place in the world her population must be maintained. Unless fathers and mothers produce an average of over three children that population will not be maintained.

If you say to a young husband and wife with their one or two children, "Do you like to contemplate that when you both leave life your country will, through your action, be worse off than when you entered life?" that is an appeal to patriotism, and likely to be a successful appeal.

There are signs of a public opinion forming which will condemn the selfishness of marriages without their proper heritage of children, but such

public opinion will not be strengthened by an indiscriminate condemnation of birth control.

May I end my speech with an appeal that the Church approaches this question, in common with certain others, in the light of modern knowledge and the needs of a new world, and unhampered by traditions which have outworn their usefulness?

PRINTED IN GREAT BRITAIN BY
THE WHITEFRIARS PRESS, LTD., LONDON AND TONBRIDGE.

*** END OF THE PROJECT GUTENBERG EBOOK LOVE—
MARRIAGE—BIRTH CONTROL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.